

25STCV19131 25STCV19131

County: los-angeles

Division: Civil Law and Motion

Department: 413

Hearing date: 2026-07-14

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C413%2C07%2F14%2F2026

Source SHA-256: 2c40f63f6545dc32801dca89f7a8822390b3bf02cf89dd7b75f83eab837b44a4

Case Number: 25STCV19131 Hearing Date: July 14, 2026 Dept: 413

TENTATIVE RULING

HEARING DATE: 07/14/2026

CASE NUMBER: 25STCV19131

CASE NAME: CHARLES COFIELD, et al. vs FORD APARTMENTS, L.P., A CA...

MOVING PARTY: Defendants Ford Apartments, L.P.,
and Single Room Occupancy Housing Corporation

OPPOSING PARTY: Plaintiffs Charles Cofield, Alex
Hodge, Dante Richardson, Roderick Rodges, Jonine Scott, and Corey White

PROCEEDING: Motion to Strike

RULING SUMMARY: Defendants Ford Apartments, L.P. ("Ford") and Single Room
Occupancy Housing Corporation's Motion to Strike is granted with leave to amend
as to Paragraph 46, lines 15:21-25; and denied as to Paragraph 91, lines
27:1-13, and Paragraph 96, lines 28:1-3.

Defendants Ford Apartments, L.P., and Single Room Occupancy
Housing Corporation are to file an Answer within _____ days of this Court
Ruling.

Background

On June

30, 2025, Plaintiffs Charles Cofield ("Cofield"), Alex Hodge ("Hodge"), Dante Richardson ("Richardson"), Roderick Rodgers ("Rodgers"), Jonnie Scott ("Scott"), and Corey White ("White" and collectively "Plaintiffs") filed their Complaint against Defendants Ford Apartments, L.P. ("Ford") and Single Room Occupancy Housing Corporation ("SROHC" and with Ford "Defendants").

On

August 26, 2025, Defendants filed a Motion to Strike regarding punitive damages and attorney fees, which was granted in part. Regarding attorneys' fees, the Court ruled: "Defendants' motion to strike attorneys' fees claims and prayer as to plaintiff Alex Hodge is granted with leave to amend. Defendants' motion to strike is otherwise denied. Plaintiff must file an amended Complaint as to Alex Hodge's request for attorneys' fees within 30 days. An OSC Re: Amended Complaint is set for March 10, 2026, at 8:30 a.m., and the Case Management Conference is continued to May 1, 2026 at 8:30 a.m." (01/26/2026 Ruling.)

The

First Amended Complaint ("FAC"), filed on January 26, 2026, alleges eight causes of action for: (1) Breach of Contract/Covenant of Quiet Enjoyment by all Plaintiffs other than Hodge against Ford; (2) Tortious Breach of the Implied Warranty of Habitability by all Plaintiffs other than Hodge against Ford; (3) Negligence by Plaintiffs against Defendants; (4) Private Nuisance by Plaintiffs against Defendants; (5) Violation of Civ. Code § 1942.4 by all Plaintiffs other than Hodge against Ford; (6) Violation of Unfair Business Practices by all Plaintiffs other than Hodge against Defendants; (7) Violation of L.A. Tenant Anti-Harassment Ordinance by all Plaintiffs other than Hodge against Defendants; and (8) Violation of L.A. Mun. Code § 8.52.130.

Plaintiffs,

other than Hodge, allege that they are low-income bona fide tenants of various units located in a building at 1000 E. 7th Street, Los Angeles, CA 90021 (the "Subject Property"), which is owned and managed by Defendants. Hodge is distinguished as a visitor of the Subject Property. The FAC asserts that Defendants failed to maintain and repair the Subject Property, leading to various habitability issues that caused injury to Plaintiffs.

On

March 13, 2026, Plaintiffs dismissed Hodge without prejudice from the FAC. On April 2, 2026, Defendants filed this Motion to Strike. On June 30, 2026, Plaintiffs filed their Opposition. On

July 7, 2026, Defendants filed their Reply.

LEGAL STANDARD

Any party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof. (Code Civ. Proc. § 435(b)(1); CRC, rule 3.1322(b).) The court may, upon a motion or at any time in its discretion and upon terms it deems proper: (1) strike out any irrelevant, false, or improper matter inserted in any pleading; or (2) strike out all or any part of any pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. (Code Civ. Proc, § 436(a)-(b); *Stafford v. Shultz* (1954) 42 Cal.2d 767, 782 [“Matter in a pleading which is not essential to the claim is surplusage; probative facts are surplusage and may be stricken out or disregarded”].) “Where the defect raised by a motion to strike or by demurrer is reasonably capable of cure, leave to amend is routinely and liberally granted to give the plaintiff a chance to cure the defect in question.” (*CLD Construction, Inc. v. City of San Ramon* (2004) 120 Cal.App.4th 1141, 1146.) The burden is on the complainant to show the Court that a pleading can be amended successfully. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 348.)

DISCUSSION

Defendants seek to strike the request for punitive damages and attorney fees from the FAC. Specifically, Defendants seek to strike the following paragraphs:

· ¶

46, 15:21-25 - “Plaintiffs’ lease agreements may contain an attorney fee provision that entitles Plaintiffs to attorney fees should they become the prevailing party in this action. Subject to the possible attorney’s fee provision in Plaintiffs’ lease agreements, Plaintiffs are entitled to an award of attorney’s fees and costs.”

· ¶ 91, 27:1-13 - “As set forth in the provisions of this ordinance, Plaintiffs are further entitled to rent refunds, civil penalties for each incident of harassment, reasonable attorney’s fees and costs, and other appropriate relief.”

· ¶

96, 28:1-3 - "As set forth in the provisions of this ordinance, Plaintiffs are further entitled to rent refunds, civil penalties, reasonable attorney's fees and costs and other appropriate relief that the court may deem proper."

Defendants argue that there is no attorney's fee provision in Plaintiffs' lease agreements; that neither Los Angeles County Code §§ 45.33 nor § 8.52.130 allow attorney's fees as presented in the FAC as they do not apply to the Subject Property; that Plaintiffs have failed to provide support for their claims for attorney fees pursuant to the Anti-Tenant Harassment Ordinance; and that Plaintiffs admit that Los Angeles Housing Department ("LAHD") found the Subject Property in compliance and attorney fees are precluded.

Plaintiffs contend that they may be entitled to attorney's fees pursuant to contract, as alleged, and the use of "may" in the pleadings is not prejudicial or improper, and that Plaintiffs have alleged a statutory basis for attorney's fees. Plaintiffs take issue with Defendants' argument, arguing that Defendants seek to resolve factual disputes through a motion to strike and such arguments depend almost entirely on factual assertions outside the FAC.

In Reply, Defendants argue that the conditional wording is why Paragraph 46 needs to be stricken – there is no lease containing an attorney's fee clause alleged. Defendants further asserts that *Camenisch v. Superior Ct.* (1996) 44 Cal.App.4th 1689 ("Camenisch") does not discuss attorney fees, no applicable statutory fee basis is alleged, and the presentation of prejudice does not cure the pleading defect.

Defendants' moving declaration includes exhibits. The grounds for a motion to strike are limited to matters appearing on the face of the challenged pleading or matters which must or may be judicially noticed. (Civ. Proc. Code § 437(a).) Defendants have not asked the Court to take judicial notice of any fact or document. The Court does consider the exhibits to the declaration in connection with this Motion to Strike.

Plaintiffs fail to allege a contractual basis for attorney's fees. (See FAC at ¶ 46.) While Plaintiffs contend that speculative or conditional language is allowed in a complaint, they offer no legal autho

rity to support this argument.

(See Opp. at 3:21-4:26.) While Plaintiffs cite to Camenisch, that case is distinguishable as (1) it concerned a legal malpractice action arising from the defendant's alleged negligence in preparing trust and estate documents, and (2) the Camenisch Court held that there is no authority compelling a court to strike allegations regarding damages that, at the time of the motion to strike, are too speculative for recovery but which may become recoverable if tax liability matures before trial. Here, Plaintiffs are attempting to plead attorney's fees based on contract and have failed to allege a contractual attorneys' fees provision.

Regarding Plaintiffs' allegations

in Paragraph 91, Plaintiffs base their requests for attorney's fees on the L.A. Tenant Anti-Harassment Ordinance, alleged to be Los Angeles Municipal Code ("LAMC") Chapter IV Article 5.3 § 45.33. (See FAC at ¶ 88.) LAMC § 45.35(A) provides that "[a] tenant prevailing in court under this article" is entitled to "reasonable attorney's fees and costs . . ." Similarly, the FAC pleads a cause of action for violation of Civ. Code section 1942.4, and subdivision (b)(2) of that provision also entitles Plaintiffs to attorney's fees.

Accordingly, the Motion to Strike

is granted as to Paragraph 46, lines 15:21-25; and denied as to Paragraph 91, lines 27:1-13, and Paragraph 96, lines 28:1-3.

Conclusion

Defendants Ford Apartments, L.P., and

Single Room Occupancy Housing Corporation's Motion to Strike is granted as to Paragraph 46, lines 15:21-25; and denied as to Paragraph 91, lines 27:1-13, and Paragraph 96, lines 28:1-3.

Defendants Ford Apartments, L.P.,

and Single Room Occupancy Housing Corporation are to file an Answer within _____ days of this Court Ruling.

Date: 07/14/2026 _____

William E. Weinberger

Judge, Los Angeles Superior Court